The Kansas-Nebraska Act

33rd Congress · May 30, 1854

Source: An Act to Organize the Territories of Nebraska and Kansas (1854), 10 Stat. 277. Public domain. Key popular-sovereignty provision (the act's operative section on slavery).

> Senator Stephen Douglas's act let settlers in Kansas and Nebraska decide slavery by “popular sovereignty,” repealing the Missouri Compromise line. It triggered a rush of pro- and anti-slavery settlers and the violence of “Bleeding Kansas.”

COMPLETE TEXT — UNEDITED

An Act to Organize the Territories of Nebraska and Kansas (May 30, 1854). The heart of the act was its provision on slavery in the new territories, replacing the Missouri Compromise line with “popular sovereignty”:

That the Constitution, and all Laws of the United States which are not locally inapplicable, shall have the same force and effect within the said Territory of Nebraska as elsewhere within the United States, except the eighth section of the act preparatory to the admission of Missouri into the Union approved March sixth, eighteen hundred and twenty, which, being inconsistent with the principle of non-intervention by Congress with slaves in the States and Territories, as recognized by the legislation of eighteen hundred and fifty, commonly called the Compromise Measures, is hereby declared inoperative and void; it being the true intent and meaning of this act not to legislate slavery into any Territory or State, nor to exclude it therefrom, but to leave the people thereof perfectly free to form and regulate their domestic institutions in their own way, subject only to the Constitution of the United States.

Provided, That nothing herein contained shall be construed to revive or put in force any law or regulation which may have existed prior to the act of sixth March, eighteen hundred and twenty, either protecting, establishing, prohibiting, or abolishing slavery.